

25STCV20849 25STCV20849

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Case Number: 25STCV20849 Hearing Date: July 10, 2026 Dept: 514

Mendoza v. Bautista

25STCV20849

Defendants' Motion to Compel Deposition of Plaintiff

Tentative Ruling

The motion is denied without prejudice.

Background

On July 15, 2025, Adriana Gonzalez Mendoza ("Plaintiff") filed the complaint in this action against Rodrigo Bautista, Enterprise Truck Rental Inc., Crystal ICE Company aka Crystal ICE Los Angeles, and Does 1 through 20, asserting causes of action for motor vehicle negligence and general negligence arising out of a vehicle accident at or near the intersection of East Gage Avenue and South Central Avenue in Los Angeles on September 8, 2024.

On August 5, 2025, Plaintiff amended the complaint to name Ean Holdings LLC dba Enterprise Rent a Truck Enterprise Rent a Car Alamo Rent a Car National Car Rental ("Ean") as Doe 1.

On August 7, 2025, the Court, at the request of Plaintiff, dismissed Defendant Enterprise Truck Rental Inc.

On August 20, 2025, Rodrigo Bautista and U.S.

Crystal Ice Company (collectively “Defendants”) filed an answer.

On September 22, 2025, the Court, at the request of Plaintiff, dismissed Ean.

On June 8, 2026, Defendants filed a motion to compel Plaintiff’s deposition. On June 10, 2026, Defendants filed a similar (or perhaps the same) motion with a new reservation number. The Court treats the motion filed on June 10 as superseding the motion filed on June 8. In the motion, Defendants also seek sanctions.

On June 29, 2026, Plaintiff filed an opposition, along with her own request for sanctions.

No reply has been filed.

Trial is set for December 20, 2027.

Legal Standard

“Any party may obtain discovery ... by taking in California the oral deposition of any person, including any party to the action.” (Code Civ. Proc., § 2025.010.) Code of Civil Procedure sections 2025.210 through 2025.280 provide the requirements for (among other things) what must be included in a deposition notice, when and where depositions may be taken, and how and when the notice must be served.

“The service of a deposition notice ... is effective to require any deponent who is a party to the action ... to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying.” (Code Civ. Proc., § 2025.280, subd. (a).)

Section 2025.410 requires any party to serve a written objection at least three days before the deposition if the party contends that a deposition notice does not comply with the provisions of sections 2025.210 through 2025.280. (Code Civ. Proc., § 2025.410, subd. (a).)

Code of Civil Procedure § 2025.450(a) provides:

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice."

(Code Civ. Proc., § 2025.450, subd. (a).)

"The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance."

(Code Civ. Proc., § 2025.450, subd. (b)(2).)

When a motion to compel is granted, "the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.450, subd. (g)(1).)

In Chapter 7 of the Civil Discovery Act, section 2023.010, subdivision (d), defines "[m]isuses of the discovery process" to include "[f]ailing to respond to or to submit to an authorized method of discovery." Where a party or attorney has engaged in misuse of the discovery process, the court may impose a monetary sanction in the amount of "the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (Code Civ. Proc., § 2023.030, subd. (a).)

Discussion

Defendants made several unsuccessful efforts

to schedule the deposition of Plaintiff, beginning in December 2025. (Huang Decl., ¶¶ 2-7, 12.) On March 12, 2026, Defendants noticed the

deposition for May 14. (Huang Decl., ¶¶

8-11 & Exh. A.) Plaintiff apparently

did not serve any objection to the deposition notice, and she did not appear

for her deposition on May 14. (Huang

Decl., ¶ 9.)

Defendants then filed this motion to

compel. Defendants, however, skip a

mandatory step required by statute: Defendants do not submit with their motion

a declaration showing that Defendants met and conferred with Plaintiff or

contacted Plaintiff to inquire about the nonappearance. This is required. (Code Civ. Proc., § 2025.450,

subd. (b)(2).)

Under the Civil Discovery Act, Defendants plainly have the

right to take Plaintiff's deposition.

But to obtain a court order compelling the deposition, Defendants must

comply with all applicable procedural requirements. They have not done so. Accordingly, the Court must deny the motion, without prejudice, on procedural grounds.

As the motion is denied, so too is Defendant's

request for monetary sanctions.

The Court also denies the request of

Plaintiff for monetary sanctions. The

Court finds that under all of the circumstances of this matter, including

Defendants' multiple attempts to schedule the deposition and Plaintiff's

failure to object to the deposition notice, it would be unjust to impose

sanctions on Defendants or their counsel.

Conclusion

The Court DENIES without prejudice

Defendants' motion to compel the deposition of Plaintiff Adriana Gonzalez

Mendoza.

The Court DENIES each side's request for

sanctions.

The Court ORDERS the parties to meet and confer (in person, by telephone, or by video conference) by no later than July 24, 2026, regarding the scheduling of Plaintiff's deposition.

Moving Party is ORDERED to give notice.